

## 25STCV33715 25STCV33715

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-10

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Case Number: 25STCV33715 Hearing Date: September 10, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:22 PM on September 9, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 9, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to [smcdept734@lacourt.org](mailto:smcdept734@lacourt.org), with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff insurance company filed a

Complaint alleging that Defendants orchestrated vehicular collisions to commit insurance fraud.

Defendants filed Cross-Complaints alleging breach of contract and breach of the implied covenant of good faith and fair dealing.

Defendants Grigor Keshishyan, Levon Arzumanyan and Meri Grigoryan move for summary judgment as to the Complaint.

#### TENTATIVE RULING

The opposing Declaration of David L. Fleck, ¶¶ 10, 11, 6 and 17 satisfies the standard set forth in Code Civ. Proc. § 473c(h)[1] for a continuance to permit Plaintiff to conduct discovery to obtain facts essential to justify opposition. Indeed, the trial date is set for March 13, 2028—18 months from the date of this hearing.

Defendants Grigor Keshishyan, Levon Arzumanyan and Meri Grigoryan's motion for summary judgment as to the Complaint is DENIED without prejudice to a new motion being filed after the parties have had an opportunity to conduct adequate discovery.

[1]

(h)If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.

(Civ. Proc. Code, § 437c(h)[bold emphasis added].)